

RAYNER SURGICAL INC. et al v. MANKIND PHARMA LTD. et al

Plaintiff:	RAYNER SURGICAL INC. and RAYNER INTRAOCULAR LENSES LTD.
Defendant:	MANKIND PHARMA LTD. and LIFESTAR PHARMA LLC
Case Number:	3:2026cv07370
Filed:	June 18, 2026
Court:	U.S. District Court for the District of New Jersey
Presiding Judge:	Georgette Castner
Referring Judge:	J Brendan Day
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

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Docket Report

This docket was last retrieved on August 3, 2026. A more recent docket listing [may be available from PACER](#).

Date Filed	Document Text
August 3, 2026	Filing 7 WAIVER OF SERVICE Returned Executed by RAYNER SURGICAL INC., RAYNER INTRAOCULAR LENSES LTD.. LIFESTAR PHARMA LLC waiver sent on 7/27/2026, answer due 9/25/2026. (LIZZA, CHARLES)
August 3, 2026	Filing 6 WAIVER OF SERVICE Returned Executed by RAYNER INTRAOCULAR LENSES LTD., RAYNER SURGICAL INC.. MANKIND PHARMA LTD. waiver sent on 7/27/2026, answer due 9/25/2026. (LIZZA, CHARLES)
July 7, 2026	Filing 5 NOTICE of Appearance by ALEXANDER LEE CALLO on behalf of RAYNER INTRAOCULAR LENSES LTD., RAYNER SURGICAL INC. (CALLO, ALEXANDER)
June 22, 2026	Filing 4 SUMMONS ISSUED as to LIFESTAR PHARMA LLC, MANKIND PHARMA LTD.. Attached is the official court Summons, please fill out Defendant and Plaintiffs attorney information and serve. (dmr3)
June 22,	Filing 3 AO120 Patent Form filed. (dmr3)

Date Filed	Document Text
2026	
June 22, 2026	Notice of Judicial Preferences. #Click here for the Judge's Individual Procedure Requirements. (dmr3)
June 18, 2026	Judge Georgette Castner and Magistrate Judge J. Brendan Day added. (dmr3)
June 18, 2026	Filing 2 Corporate Disclosure Statement by RAYNER INTRAOCULAR LENSES LTD., RAYNER SURGICAL INC.. (LIZZA, CHARLES)
June 18, 2026	Filing 1 COMPLAINT against LIFESTAR PHARMA LLC, MANKIND PHARMA LTD. (Filing and Admin fee \$ 405 receipt number ANJDC-17558317) , Related Case Selected, filed by RAYNER SURGICAL INC., RAYNER INTRAOCULAR LENSES LTD.. (Attachments: #1 Civil Cover Sheet)(LIZZA, CHARLES)

I. Executive Summary and Procedural Information

Parties & Counsel:

Plaintiff: [Rayner Surgical Inc.](#) (Delaware) and [Rayner Intraocular Lenses Ltd.](#) (England)

Defendant: [Mankind Pharma Ltd.](#) (India) and [Lifestar Pharma LLC](#) (Delaware)

Plaintiff's Counsel: [Saul Ewing LLP](#)

Case Identification: [3:26-cv-07370](#), D.N.J., 06/18/2026

Venue Allegations: Venue is alleged to be proper as to Mankind Pharma Ltd. because it is a foreign corporation that may be sued in any judicial district. Venue is alleged to be proper as to Lifestar Pharma LLC because it has a regular and established place of business in New Jersey.

Core Dispute: Plaintiffs allege that Defendants' filing of an Abbreviated New Drug Application (ANDA) to market a generic version of Plaintiffs' OMIDRIA® product constitutes an act of infringement of three U.S. patents directed to stable, preservative-free ophthalmic solutions.

Technical Context: The technology concerns injectable pharmaceutical formulations used during cataract surgery to maintain pupil dilation (mydriasis) and reduce postoperative pain, addressing the need for stable solutions that do not contain potentially toxic preservatives or antioxidants.

Key Procedural History: This is a Hatch-Waxman action initiated under 35 U.S.C. § 271(e) (2) in response to Defendants' submission of ANDA No. 221449 containing a Paragraph IV certification. The patents-in-suit are listed in the FDA's Orange Book for the OMIDRIA® drug product. The complaint notes prior litigation involving the same patents against other generic drug manufacturers.

Case Timeline

Date	Event
2012-10-24	Earliest Priority Date for '856, '406, and '246 Patents
2014-05-01	FDA Approval of OMIDRIA® New Drug Application (NDA)
2015-06-30	'856 Patent Issued
2016-11-08	'406 Patent Issued
2018-01-02	'246 Patent Issued
2026-05-04	Defendants' Paragraph IV Notice Letter Sent
2026-06-18	Complaint Filed

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 9,066,856

Patent Identification: U.S. Patent No. [9,066,856](#), "Stable Preservative-Free Mydriatic and Anti-Inflammatory Solutions for Injection," issued June 30, 2015 [Compl. ¶30](#)

The Invention Explained:

Problem Addressed: During intraocular surgery, maintaining pupil dilation (mydriasis) is critical, but the iris tends to constrict (miosis), increasing procedural risk ['856 Patent, col. 1:49-61](#). Additionally, existing injectable solutions used to counteract this, such as those containing epinephrine, often include preservatives (e.g., benzalkonium chloride) or antioxidants (e.g., sodium metabisulfite) that can be toxic to sensitive intraocular tissues ['856 Patent, col. 2:1-14](#).

The Patented Solution: The patent describes a liquid pharmaceutical formulation that combines a mydriatic agent (phenylephrine) and an anti-inflammatory agent (ketorolac) in a buffered aqueous solution that is free of both preservatives and antioxidants ['856 Patent, abstract](#). This formulation is designed to be injected into a standard intraocular irrigation solution used during surgery, providing a method to maintain mydriasis and reduce pain without introducing potentially toxic additives ['856 Patent, col. 3:46-54](#).

Technical Importance: The invention provided a method for delivering a combination of therapeutic agents to maintain pupil dilation and control pain during ocular surgery, while addressing the long-standing problem of excipient-related toxicity by creating a stable formulation without preservatives or antioxidants ['856 Patent, col. 2:15-24](#).

Key Claims at a Glance:

The complaint recites independent claim 1 [Compl. ¶42](#)

The essential elements of independent claim 1 are:

- A sterile liquid pharmaceutical formulation
- consisting essentially of phenylephrine, ketorolac and a buffer system
- in an aqueous carrier,

□wherein the formulation is stable for at least six months when stored at a temperature of from 5+/-3° C. to 25 +/-2° C.

□The complaint incorporates by reference all preceding paragraphs, which mention infringement of "one or more claims," suggesting the right to assert other claims may be reserved **Compl. ¶38**

U.S. Patent No. 9,486,406

□**Patent Identification:** U.S. Patent No. [9,486,406](#), "Stable Preservative-Free Mydriatic and Anti-Inflammatory Solutions for Injection," issued November 8, 2016 **Compl. ¶31**

□**The Invention Explained:**

□**Problem Addressed:** As with the parent '856 Patent, this patent addresses the need for a stable combination of a mydriatic (phenylephrine) and an NSAID (ketorolac) for use in ophthalmic surgery, specifically noting the toxicity concerns associated with preservatives and antioxidants found in prior art formulations **'406 Patent, col. 1:53-col. 2:14**

□**The Patented Solution:** The patent describes a liquid pharmaceutical formulation containing phenylephrine and ketorolac in a buffered aqueous carrier that achieves stability **without** the inclusion of preservatives and antioxidants **'406 Patent, abstract** **'406 Patent, col. 3:52-61** This solution is intended for dilution into an irrigation fluid for use during surgery.

□**Technical Importance:** The invention offers a solution for simultaneously maintaining pupil dilation and reducing pain/inflammation during eye surgery, while explicitly avoiding the use of potentially toxic preservatives and antioxidants, thereby enhancing patient safety **'406 Patent, col. 2:15-24**

□**Key Claims at a Glance:**

□The complaint recites independent claim 2 **Compl. ¶62**

□The essential elements of independent claim 2 are:

□A liquid pharmaceutical formulation

□comprising phenylephrine, ketorolac and a buffer system

□in an aqueous carrier,

□wherein the formulation is stable without the inclusion of preservatives and antioxidants for at least six months when stored at a temperature of from 5+/-3°C. to 25+/-2° C.

□The complaint incorporates by reference all preceding paragraphs, which mention infringement of "one or more claims," suggesting the right to assert other claims may be reserved **Compl. ¶58**

U.S. Patent No. 9,855,246 (Multi-Patent Capsule)

□**Patent Identification:** U.S. Patent No. [9,855,246](#), "Stable Preservative-Free Mydriatic and Anti-Inflammatory Solutions for Injection," issued January 2, 2018 **Compl. ¶32**

□**Technology Synopsis:** This patent, part of the same family, is directed to a liquid intraocular ophthalmic pharmaceutical solution **dosage form**. It specifically claims the combination of phenylephrine and ketorolac in a pH-adjusted, buffered solution that is free of preservatives, antioxidants, and solubilizing agents, and further specifies that this solution is contained in a single-use container with a nitrogen gas overlay to enhance stability **'246 Patent, abstract** The patent also recites specific concentration ranges for the active ingredients **'246 Patent, claim 1**

□**Asserted Claims:** The complaint recites independent claim 1 **Compl. ¶82**

□**Accused Features:** The complaint alleges that Defendants' ANDA Product is a liquid intraocular ophthalmic solution dosage form that meets all the limitations of claim 1, including

the specified components, concentrations, stability, and packaging within a single-use container with a nitrogen gas overlay **Compl. ¶83**

III. The Accused Instrumentality

Product Identification: The accused instrumentality is Defendants' proposed generic version of OMIDRIA® (phenylephrine and ketorolac injection, 1%/0.3%), which is the subject of ANDA No. 221449 (the "ANDA Product") **Compl. ¶1**

Functionality and Market Context: The ANDA Product is a sterile liquid pharmaceutical formulation intended for dilution into an ocular irrigating solution for use during cataract surgery or intraocular lens replacement **Compl. ¶25** Its purposes are to maintain pupil size by preventing intraoperative miosis and to reduce postoperative pain **Compl. ¶25** The complaint alleges that, to gain FDA approval, the ANDA product must generally contain the same active and inactive ingredients in the same concentrations as the reference listed drug, OMIDRIA® **Compl. ¶41** Plaintiffs allege that Defendants intend to commercially manufacture and sell the ANDA Product in the United States, thereby displacing sales of OMIDRIA® **Compl. ¶20**

IV. Analysis of Infringement Allegations

The infringement allegations are based on Defendants' submission of ANDA No. 221449, which Plaintiffs contend is an act of infringement under 35 U.S.C. § 271(e)(2)(A) **Compl. ¶40** **Compl. ¶60** The complaint asserts that because the ANDA Product seeks approval as a generic version of OMIDRIA®, it will necessarily have the same formulation and stability characteristics recited in the patent claims **Compl. ¶41** **Compl. ¶61**

The OMIDRIA® prescribing information, attached as Exhibit A to the complaint, includes a chart demonstrating the product's efficacy in maintaining pupil size during surgery compared to a placebo. **Compl., Ex. A at 31** This chart, "Intraoperative Pupil Diameter (mm) Change-from-Baseline," visually supports the core purpose of the patented technology by showing that pupil diameter in Omidria-treated groups remained relatively stable, whereas it progressively constricted in placebo-treated groups.

'856 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A sterile liquid pharmaceutical formulation	The ANDA Product is alleged to be a sterile liquid pharmaceutical formulation.	¶43	col. 3:46-47
consisting essentially of phenylephrine, ketorolac and a buffer system	The ANDA Product is alleged to consist essentially of phenylephrine, ketorolac, and a buffer system, based on FDA regulations requiring sameness for generic ophthalmic drugs.	¶41; ¶43	col. 3:47-49
in an aqueous carrier,	The ANDA Product is alleged to be	¶43	col. 3:49-

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
	formulated in an aqueous carrier.		50
wherein the formulation is stable for at least six months when stored at a temperature of from 5+/-3° C. to 25 +/-2° C.	The ANDA Product is alleged to meet this stability requirement to be approved as a generic equivalent of OMIDRIA®.	¶43	col. 3:50-54

'406 Patent Infringement Allegations

Claim Element (from Independent Claim 2)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A liquid pharmaceutical formulation comprising phenylephrine, ketorolac and a buffer system in an aqueous carrier,	The ANDA Product is alleged to be a liquid pharmaceutical formulation comprising these components, based on its status as a generic version of OMIDRIA®.	¶63	col. 11:2-4
wherein the formulation is stable without the inclusion of preservatives and antioxidants for at least six months when stored at a temperature of from 5+/-3°C. to 25+/-2° C.	The ANDA Product is alleged to be stable for the required period and, like OMIDRIA®, is free of preservatives and antioxidants.	¶26; ¶63	col. 11:4-8

Identified Points of Contention:

Scope Questions: The term "consisting essentially of" in the '856 Patent will be a primary focus. The infringement analysis will question whether Defendants' ANDA Product contains any unlisted ingredients and, if so, whether those ingredients materially affect the "basic and novel properties" of the claimed invention, which the patentee may argue is stability in the absence of preservatives and antioxidants ('856 Patent, col. 9:44-52).

Technical Questions: A central technical question is whether the ANDA Product actually meets the claimed stability profile ("stable for at least six months"). The complaint makes this allegation on "information and belief" Compl. ¶43 Compl. ¶63, premised on the requirements for FDA approval. The case will depend on the actual, undisclosed stability data contained within the ANDA.

V. Key Claim Terms for Construction

The Term: "consisting essentially of" ('856 Patent, Claim 1)

Context and Importance: This transitional phrase defines the scope of the claimed formulation. Its construction is critical because it will determine whether any additional, unlisted excipients in the Defendants' ANDA product would allow it to avoid infringement. Practitioners may focus on this term because it is a well-established term of art with a specific legal meaning that is narrower than "comprising" but broader than "consisting of."

Intrinsic Evidence for Interpretation:

Evidence for a Broader Interpretation: The patent does not provide an explicit definition for the term, which may lead parties to argue for the default interpretation allowing for unlisted ingredients that do not materially affect the invention's basic and novel characteristics.

Evidence for a Narrower Interpretation: Plaintiffs may argue that the "basic and novel" characteristic is the achievement of stability in a "very pure" formulation specifically lacking preservatives and antioxidants, as highlighted in the specification ('856 Patent, col. 9:48-52). This could support a reading where any additional ingredient that could potentially affect stability or toxicity, even if not a classic preservative, would be considered a material alteration.

The Term: "stable" ('856 Patent, Claim 1; '406 Patent, Claim 2)

Context and Importance: This term defines a required performance characteristic of the formulation and is central to the infringement analysis. Infringement will depend on whether the ANDA product's stability data meets the specific threshold defined in the patent.

Intrinsic Evidence for Interpretation:

Evidence for a Broader Interpretation: The specification provides an explicit definition: a formulation is "stable" if it "contains less than 5% total related substances" after a specified storage period ('856 Patent, col. 8:19-22). Defendants may argue that this is the sole definition and meeting this 5% threshold is sufficient.

Evidence for a Narrower Interpretation: The specification also states that "[i]n a preferred embodiment of the invention, the stable formulations of the invention have less than 1.0% total related substances after a given storage period" ('856 Patent, col. 8:34-37). Plaintiffs may argue this passage informs the meaning of "stable" as understood by a person of ordinary skill, suggesting a much lower impurity level is what the inventors truly regarded as stable for the purposes of the invention.

VI. Other Allegations

Indirect Infringement: The complaint alleges that Defendants will induce infringement by marketing and distributing the ANDA Product with a product insert and prescribing information that will instruct healthcare professionals and others to use the product in an infringing manner

Compl. ¶46 Compl. ¶66 Compl. ¶86

Willful Infringement: The complaint alleges that Defendants had actual and constructive notice of the patents-in-suit prior to filing the ANDA, based on the patents' listing in the FDA's Orange Book Compl. ¶29 Compl. ¶47 Compl. ¶67 Compl. ¶87 The filing of a Paragraph IV certification is also presented as evidence of willfulness. Based on this alleged conduct, Plaintiffs assert the case is "exceptional" and seek enhanced damages and attorneys' fees

Compl. ¶48 Compl. ¶68 Compl. ¶88

VII. Analyst's Conclusion: Key Questions for the Case

□ A central issue will be one of **claim scope**: can the term "consisting essentially of," as used in the '856 Patent, be interpreted to permit additional excipients in the accused generic product without materially altering the formulation's core properties of purity and stability in the absence of preservatives and antioxidants?

□ A key evidentiary question will be one of **factual correspondence**: does the chemical composition and demonstrated stability profile of Defendants' ANDA product, as confidentially submitted to the FDA, actually meet the specific concentration, pH, and stability limitations recited in the asserted claims? The outcome will likely hinge on a comparison of the ANDA data against the explicit definitions and embodiments in the patents.

□ A foundational question will be one of **patent validity**: although not detailed in the complaint, Defendants' Paragraph IV notice implies an assertion of invalidity. The case may therefore turn on whether Defendants can prove, by clear and convincing evidence, that the asserted claims are invalid as obvious or anticipated by prior art related to ophthalmic solutions.

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UNITED STATES DISTRICT COURT

DISTRICT OF NEW JERSEY

RAYNER SURGICAL INC. and RAYNER

INTRAOCULAR LENSES LTD.,

Plaintiffs,

v.

MANKIND PHARMA LTD. and LIFESTAR

PHARMA LLC,

Defendants.

COMPLAINT FOR PATENT INFRINGEMENT

Plaintiffs Rayner Surgical Inc. ("Rayner Surgical") and Rayner Intraocular Lenses Ltd.

("Rayner Intraocular") (collectively, "Rayner" or "Plaintiffs"), by their undersigned attorneys,

bring this action against Defendants Mankind Pharma Ltd. ("Mankind Pharma") and Lifestar Pharma LLC ("Lifestar") (collectively, "Mankind" or "Defendants") and hereby allege as follows:

NATURE OF THE ACTION

1.

This action for patent infringement, brought pursuant to the patent laws of the United States, 35 U.S.C. § 1, et seq., and in particular 35 U.S.C. § 271, arises from Mankind Pharma's submission of Abbreviated New Drug Application ("ANDA") No. 221449 ("Mankind ANDA") to the United States Food and Drug Administration ("FDA"). Through the Mankind C.A. No. _

(Filed Electronically)

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ANDA, Mankind Pharma seeks approval to market a generic version of Rayner's product OMIDRIA® (phenylephrine and ketorolac injection, 1%/0.3%) (the "ANDA Product") prior to the expiration of United States Patent No. 9,066,856 (the "'856 Patent"); United States Patent No. 9,486,406 (the "'406 Patent"); and United States Patent No. 9,855,246 (the "'246 Patent") (together, the "Patents-in-Suit"). Plaintiffs seek injunctive relief precluding infringement, attorneys' fees, and any other relief the Court deems just and proper.

2.

This is also an action under 28 U.S.C. §§ 2201–02 for a declaratory judgment of patent infringement arising under the patent laws of the United States, 35 U.S.C. § 1, et seq., and in particular 35 U.S.C. § 271.

THE PARTIES

3.

Plaintiff Rayner Surgical is a corporation organized and existing under the laws of the State of Delaware and having a principal place of business at 1255 Lynnfield Road, Suite 257, Memphis, TN 38119.

4.

Plaintiff Rayner Intraocular is a private limited company organized and existing under the laws of England, having a principal place of business at 10 Dominion Way, Worthing, West Sussex, England BN14 8AQ.

5.

On information and belief, Defendant Mankind Pharma is a corporation organized and existing under the laws of India and having a principal place of business at 208 Okhla Industrial Estate, Phase III, New Delhi, India 110020.

6.

On information and belief, Defendant Lifestar is a company organized and existing under the laws of the State of Delaware with a principal place of business at 1200 MacArthur Blvd., Mahwah, New Jersey 07430.

7.

On information and belief, Defendant Lifestar is the U.S. agent for Mankind Pharma.

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8.

On information and belief, Defendant Lifestar is a majority-owned subsidiary of Mankind Pharma.

9.

On information and belief, Mankind Pharma caused the Mankind ANDA to be submitted to FDA and seeks approval of the Mankind ANDA.

10. On information and belief, Mankind intends to commercially manufacture, market, offer for sale, and sell the ANDA Product throughout the United States, including in the State of New Jersey, in the event FDA approves the Mankind ANDA.

JURISDICTION AND VENUE

11. This civil action for patent infringement arises under the patent laws of the United States, including 35 U.S.C. § 271, and 28 U.S.C. §§ 1338(a), 2201, and 2202.

12. This Court has jurisdiction over the subject matter of this action pursuant to 28 U.S.C. §§ 1331 and 1338.

13. On information and belief, this Court has personal jurisdiction over Mankind Pharma under the New Jersey long-arm statute and consistent with due process because Mankind Pharma has continuous and systematic contacts with New Jersey and regularly conducts business in this Judicial District, either directly or through one or more subsidiaries, agents, and/or alter egos, has purposefully availed itself of the privilege of doing business in the State of New Jersey, and intends to sell the ANDA Product in the State of New Jersey upon approval of the Mankind

ANDA.

14. Alternatively, this Court has personal jurisdiction over Mankind Pharma because Plaintiffs' claims arise under federal law, Mankind Pharma is a foreign defendant not subject to general personal jurisdiction in any other state, and Mankind Pharma has continuous and systematic contacts with the United States as a whole, including, but not limited to, the submission

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of the Mankind ANDA to FDA, such that this Court's exercise of personal jurisdiction over Mankind Pharma satisfies due process.

15. On information and belief, this Court has personal jurisdiction over Lifestar at least because Lifestar has its principal place of business in New Jersey. This Court also has personal jurisdiction over Lifestar because Lifestar has continuous and systematic contacts with New Jersey, regularly conducts business in the State of New Jersey, has purposefully availed itself of the privilege of doing business in the State of New Jersey, and, on information and belief, intends to sell the ANDA Product in the State of New Jersey upon approval of the Mankind ANDA.

16. On information and belief, Lifestar is registered as a "Manufacturer" and "Distributor" entity with the State of New Jersey's Department of Health under Registration No. 5005074.

17. On information and belief, Lifestar is registered with the State of New Jersey's Division of Revenue and Enterprise Services as a business operating in the State of New Jersey under Business ID No. 0450064472.

18. On information and belief, Mankind is in the business of manufacturing, obtaining regulatory approval, marketing, distributing, and selling generic copies of branded pharmaceutical products throughout the United States, including within the State of New Jersey, through its own actions and/or through the actions of one or more subsidiaries, agents, and/or alter egos, from which Mankind derives a substantial portion of its revenue.

19. On information and belief, Mankind plans to sell the ANDA Product in the State of New Jersey, list the ANDA Product on the State of New Jersey's prescription drug formulary, and seek Medicaid reimbursements for sales of the ANDA Product in the State of New Jersey, either directly or through one or more of its subsidiaries, agents, and/or alter egos.

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20. On information and belief, Mankind knows and intends that the ANDA Product will be distributed and sold in New Jersey and will thereby displace sales of OMIDRIA®, causing injury to Rayner. Mankind intends to take advantage of its established channels of distribution in New Jersey for the sale of the ANDA Product.

21. On information and belief, Mankind has committed, or aided, abetted, contributed to and/or participated in the commission of, acts of patent infringement that will lead to foreseeable harm and injury to Plaintiffs, which manufacture OMIDRIA® for sale and use throughout the United States, including this Judicial District.

22. Mankind has not contested personal jurisdiction in this Court in recent cases arising out of its ANDA filings and has filed counterclaims in a case before this Court. See, e.g., Answer at 7, Theravance Biopharma R&D IP, LLC v. Eugia Pharma Specialties Ltd., No. 1:25-cv-03790-KMW-AMD (D.N.J. May 30, 2025) (Mankind Pharma and Lifestar); Answer at 5–6, Bayer Intell. Prop. GmbH v. Mankind Pharma Ltd., No. 2:22-cv-05599-EP-LDW (D.N.J. Oct. 13, 2022) (Mankind Pharma and Lifestar); Answer at 3–4, Merck Sharp & Dohme BV v. Mankind Pharma Ltd., No. 2:20-cv-02787-CCC-MF (D.N.J. Apr. 21, 2020) (Mankind Pharma); Answer at 3–7, Celgene Corp. v. Mankind Pharma Ltd., No. 3:18-cv-11081-MAS-DEA (D.N.J. Sep. 12, 2018) (Mankind Pharma) (filed counterclaims).

23. Venue is proper in this Judicial District for Mankind Pharma pursuant to at least 28 U.S.C. § 1391(c)(3) because, on information and belief, Mankind Pharma is a foreign corporation incorporated under the laws of India and may be sued in any judicial district.

24. Venue is proper in this Judicial District for Lifestar pursuant to at least 28 U.S.C. § 1400 because, on information and belief, Lifestar has a regular and established place of business in New Jersey and has committed acts of infringement in New Jersey. On information and belief,

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based on Lifestar's presence in and connections to New Jersey, discoverable information in Lifestar's possession, custody, or control regarding the Mankind ANDA will likely show that Lifestar engaged in activities in New Jersey relevant to the preparation and/or submission of the Mankind ANDA in New Jersey.

RAYNER'S APPROVED OMIDRIA DRUG PRODUCT AND PATENTS

25. Rayner makes and sells OMIDRIA®, the first FDA-approved product for intraocular use during cataract surgery or intraocular

lens replacement that both prevents

intraoperative miosis (pupil constriction) and reduces postoperative pain. A true and correct copy of the prescribing information for OMIDRIA® is attached as Exhibit A.

26. OMIDRIA® is

a

stable,

sterile

pharmaceutical formulation

containing

phenylephrine, ketorolac, citric acid, sodium citrate, and water for injection, and may include sodium hydroxide and/or hydrochloric acid for pH adjustment. OMIDRIA® is preservative-free and contains no antioxidants.

27. Rayner Surgical is the holder of New Drug Application ("NDA") No. 205388 for OMIDRIA®. The FDA approved NDA No. 205388 for OMIDRIA® in May 2014.

28. Rayner Intraocular is the assignee and owner of the '856 Patent, the '406 Patent, and the '246 Patent.

29. The '856, '406, and '246 Patents are listed in the Approved Drug Products With Therapeutic Equivalence Evaluations (an FDA publication commonly known as the "Orange Book") for OMIDRIA®.

30. The '856 Patent, entitled "Stable Preservative-Free Mydriatic and Anti-Inflammatory Solutions for Injection," was duly and lawfully issued by the U.S. Patent and Trademark Office ("USPTO") on June 30, 2015. A true and correct copy of the '856 Patent is attached as Exhibit B.

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31. The

'406 Patent, entitled "Stable Preservative-Free Mydriatic and Anti-Inflammatory Solutions for Injection," was duly and lawfully issued by the USPTO on November 8, 2016. A true and correct copy of the '406 Patent is attached as Exhibit C.

32. The

'246 Patent, entitled "Stable Preservative-Free Mydriatic and Anti-Inflammatory Solutions for Injection," was duly and lawfully issued by the USPTO on January 2, 2018. A true and correct copy of the '246 Patent is attached as Exhibit D.

MANKIND'S ANDA NO. 221449

33. On information and belief, Mankind Pharma has submitted or caused to be submitted ANDA No. 221449 to the FDA under 21 U.S.C. § 355(j), in order to obtain approval to engage in the commercial manufacture, use or sale of a purported generic version of OMIDRIA®, prior to the expiration of the '856, '406, and '246 Patents.

34. Mankind Pharma mailed Rayner Surgical Inc. and Rayner Intraocular Lenses Ltd. a letter dated May 4, 2026, regarding "Paragraph IV Patent Certification Notice regarding U.S.

Patent Nos. 9,066,856, 9,486,406, and 9,855,246 Mankind Pharma's ANDA No. 221449 for phenylephrine and ketorolac tromethamine intraocular solution (1%/0.3%)" (the "Notice Letter"). The Notice Letter represented that Mankind Pharma has submitted ANDA No. 221449 and a purported Paragraph IV certification to FDA in order to obtain approval to engage in the commercial manufacture, use, or sale of the product described in the Mankind ANDA before the expiration of the patents listed in the Orange Book for OMIDRIA®. Hence, Mankind Pharma's purpose in submitting the Mankind ANDA is to manufacture and market the ANDA Product before the expiration of the '856, '406, and '246 Patents.

35. On information and belief, if FDA approves the Mankind ANDA, Mankind will manufacture, offer for sale, or sell the ANDA Product within the United States, including within

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New Jersey, and/or will import the ANDA Product into the United States including the State of New Jersey.

36. On information and belief, if FDA approves the Mankind ANDA, Mankind will actively induce or contribute to the manufacture, use, offer for sale, or sale of the ANDA Product in the United States.

37. This action is being brought pursuant to 21 U.S.C. § 355(j)(5)(B)(iii) within forty-five days of Plaintiffs' receipt of the Notice Letter.

COUNT I

INFRINGEMENT OF THE '856 PATENT

38.

Plaintiffs restate, reallege, and incorporate by reference paragraphs 1–37 as if fully set forth herein.

39. On information and belief, Mankind Pharma has submitted or caused the submission of the Mankind ANDA to FDA, and continues to seek FDA approval of the Mankind ANDA.

40. On information and belief, Mankind Pharma has infringed one or more claims of the '856 Patent under 35 U.S.C. § 271(e)(2)(A) by submitting the Mankind ANDA with a Paragraph IV certification and seeking FDA approval of the Mankind ANDA prior to the expiration of the '856 Patent, entitling Plaintiffs to the relief provided by 35 U.S.C. § 271(e)(4), including, inter alia, an order of this Court that the effective date of approval for the Mankind ANDA be a date which is not earlier than the expiration date of the '856 Patent.

41. On information and belief, FDA regulations provide, inter alia, that, "[g]enerally, a drug product intended for ophthalmic use . . . must contain the same inactive ingredients and in the same concentration as the reference listed drug" and further that "in a product intended for ophthalmic use, an applicant may not change a buffer . . . for the purpose of claiming a therapeutic

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advantage over or difference from the listed drug . . . or by making a significant change in the pH or other change that may raise questions of irritability." 21 C.F.R. § 314.94(a)(9)(iv).

42.

For example, claim 1 of the '856 Patent recites:

A sterile liquid pharmaceutical formulation consisting essentially of phenylephrine, ketorolac and a buffer system in an aqueous carrier, wherein the formulation is stable for at least six months when stored at a temperature of from 5+/-3o C. to 25 +/-2o C.

43. On information and belief, Mankind's ANDA Product is a sterile liquid

pharmaceutical formulation consisting essentially of phenylephrine, ketorolac and a buffer system in an aqueous carrier, wherein the formulation is stable for at least six months when stored at a

temperature of from 5+/-3o C. to 25 +/-2o C. See ¶¶ 39–41, supra.

44. Mankind's commercial manufacture, use, sale, offer for sale, or importation into the United States of the ANDA Product would directly infringe, actively induce infringement, and/or contribute to infringement of one or more claims of the '856 Patent. See 35 U.S.C. § 271(a), (b), and (c). Accordingly, unless enjoined by this Court, upon FDA approval of the Mankind ANDA, Mankind will make, use, offer to sell, or sell the ANDA Product within the United States, or will import the ANDA Product into the United States, and will thereby contribute to the infringement of and/or induce the infringement of one or more claims of the '856 Patent.

45. Mankind Pharma's Notice Letter lacks any contention that Mankind's ANDA Product will not infringe, contribute to the infringement of, or induce the infringement of the '856 Patent.

46. On information and belief, upon FDA approval of the Mankind ANDA, Mankind will market and distribute the ANDA Product to resellers, pharmacies, hospitals and other clinics, health care professionals, and end users of the ANDA Product. On information and belief, Mankind will also knowingly and intentionally accompany the ANDA Product with proposed

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prescribing information and a product insert that will include instructions for using and administering the ANDA Product. Accordingly, Mankind will induce health care professionals, resellers, pharmacies, and end users of the ANDA Product to directly infringe one or more claims of the '856 Patent. In addition, on information and belief, Mankind will encourage acts of direct infringement with knowledge of the '856 Patent and knowledge that they are encouraging infringement.

47. Mankind Pharma had actual and constructive notice of the '856 Patent prior to filing the Mankind ANDA, and was aware that the filing of the Mankind ANDA with the request for FDA approval prior to the expiration of the '856 Patent would constitute an act of infringement of the '856 Patent.

48.

In addition, upon information and belief, Mankind Pharma filed the Mankind ANDA without adequate justification for asserting the '856 Patent to be invalid, unenforceable, and/or not infringed by the commercial manufacture, use, offer for sale, or sale of the ANDA Product. Mankind Pharma's conduct in certifying invalidity, unenforceability, and/or non-infringement with respect to the '856 Patent renders this case "exceptional" as that term is set forth in 35 U.S.C. § 285.

49.

Plaintiffs will be irreparably harmed if Mankind is not enjoined from infringing, and from actively inducing or contributing to the infringement of one or more claims of the '856 Patent. Plaintiffs do not have an adequate remedy at law, and considering the balance of hardships between Plaintiffs and Mankind, a remedy in equity is warranted. Further, the public interest would not be disserved by the entry of a permanent injunction.

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COUNT II

DECLARATORY JUDGMENT OF INFRINGEMENT OF THE '856 PATENT

50.

Plaintiffs restate, reallege, and incorporate by reference paragraphs 1–49 as if fully set forth herein.

51.

Plaintiffs' claims also arise under the Declaratory Judgment Act, 28 U.S.C. §§ 2201 and 2202.

52. On information and belief, if the Mankind ANDA is approved, the ANDA Product will be made, offered for sale, sold, or otherwise distributed in the United States, including in the

State of New Jersey, by or through Mankind and its affiliates. Mankind will therefore directly infringe one or more claims of the '856 Patent either literally or under the doctrine of equivalents. See 35 U.S.C. § 271(a).

53. On information and belief, Mankind knows that health care professionals or patients will use the ANDA Product in accordance with the proposed prescribing information sought by the Mankind ANDA and Mankind will therefore contribute to the infringement of and/or induce the infringement of one or more claims of the '856 Patent under one or more of 35 U.S.C. §§ 271 (b) and (c).

54. On information and belief, Mankind's infringing activity, including the commercial manufacture, use, offer to sell, sale, or importation of the ANDA Product complained of herein will begin immediately after the FDA approves the Mankind ANDA. Any such conduct before the '856 Patent expires will directly infringe, contribute to the infringement of, and/or induce the infringement of one or more claims of the '856 Patent under one or more of 35 U.S.C. §§ 271(a), (b) and (c).

55. As a result of the foregoing facts, there is a real, substantial, and continuing justiciable controversy between Plaintiffs and Mankind concerning liability for the infringement

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of one or more claims of the '856 Patent for which this Court may grant declaratory relief consistent with Article III of the United States Constitution.

56.

Plaintiffs will be substantially and irreparably harmed by Mankind's infringing activities unless those activities are enjoined by this Court. Plaintiffs have no adequate remedy at law.

57. This case is exceptional, and Plaintiffs are entitled to an award of attorneys' fees under 35 U.S.C. § 285.

COUNT III

INFRINGEMENT OF THE '406 PATENT

58.

Plaintiffs restate, reallege, and incorporate by reference paragraphs 1–57 as if fully set forth herein.

59. On information and belief, Mankind Pharma has submitted or caused the submission of the Mankind ANDA to the FDA, and continues to seek FDA approval of the Mankind ANDA.

60. On information and belief, Mankind Pharma has infringed one or more claims of the '406 Patent under 35 U.S.C. § 271(e)(2)(A) by submitting the Mankind ANDA with a Paragraph IV certification and seeking FDA approval of the Mankind ANDA prior to the expiration of the '406 Patent, entitling Plaintiffs to the relief provided by 35 U.S.C. §271(e)(4), including, inter alia, an order of this Court that the effective date of approval for the Mankind ANDA be a date which is not earlier than the expiration date of the '406 Patent.

61. On information and belief, FDA regulations provide, inter alia, that, “[g]enerally, a drug product intended for ophthalmic use . . . must contain the same inactive ingredients and in the same concentration as the reference listed drug” and further that “in a product intended for ophthalmic use, an applicant may not change a buffer . . . for the purpose of claiming a therapeutic

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advantage over or difference from the listed drug . . . or by making a significant change in the pH or other change that may raise questions of irritability.” 21 C.F.R. § 314.94(a)(9)(iv).

62.

For example, claim 2 of the '406 Patent recites:

A liquid pharmaceutical formulation comprising phenylephrine, ketorolac and a buffer system in an aqueous carrier, wherein the

formulation is stable without the inclusion of preservatives and antioxidants for at least six months when stored at a temperature of from 5+/-3°C. to 25+/-2 o C.

63. On information and belief, the ANDA Product is a liquid pharmaceutical formulation comprising phenylephrine, ketorolac and a buffer system in an aqueous carrier, wherein the formulation is stable without the inclusion of preservatives and antioxidants for at least six months when stored at a temperature of from 5+/-3°C. to 25+/-2 o C. See ¶¶ 39–41, supra.

64. Mankind's commercial manufacture, use, sale, offer for sale, or importation into the United States of the ANDA Product would directly infringe, actively induce infringement, and/or contribute to infringement of one or more claims of the '406 Patent. See 35 U.S.C. § 271(a), (b), and (c). Accordingly, unless enjoined by this Court, upon FDA approval of the Mankind ANDA, Mankind will make, use, offer to sell, or sell the ANDA Product within the United States, or will import the ANDA Product into the United States, and will thereby contribute to the infringement of and/or induce the infringement of one or more claims of the '406 Patent.

65. Mankind Pharma's Notice Letter lacks any contention that Mankind's ANDA Product will not infringe, contribute to the infringement of, or induce the infringement of the '406 Patent.

66. On information and belief, upon FDA approval of the Mankind ANDA, Mankind will market and distribute the ANDA Product to resellers, pharmacies, hospitals and other clinics, health care professionals, and end users of the ANDA Product. On information and belief, Mankind will also knowingly and intentionally accompany the ANDA Product with proposed

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prescribing information and a product insert that will include instructions for using and administering the ANDA Product. Accordingly, Mankind will induce health care professionals, resellers, pharmacies, and end users of the ANDA Product to directly infringe one or more claims of the '406 Patent. In addition, on information and belief, Mankind will encourage acts of direct infringement with knowledge of the '406 Patent and knowledge that they are encouraging infringement.

67. Mankind Pharma had actual and constructive notice of the '406 Patent prior to filing the Mankind ANDA, and was aware that the filing of the Mankind ANDA with the request for FDA approval prior to the expiration of the '406 Patent would constitute an act of infringement of the '406 Patent.

68.

In addition, upon information and belief, Mankind Pharma filed the Mankind ANDA without adequate justification for asserting the '406 Patent to be invalid, unenforceable, and/or not infringed by the commercial manufacture, use, offer for sale, or sale of the ANDA Product. Mankind Pharma's conduct in certifying invalidity, unenforceability, and/or non-infringement with respect to the '406 Patent renders this case "exceptional" as that term is set forth in 35 U.S.C. § 285.

69.

Plaintiffs will be irreparably harmed if Mankind is not enjoined from infringing, and from actively inducing or contributing to the infringement of one or more claims of the '406 Patent. Plaintiffs do not have an adequate remedy at law, and considering the balance of hardships between Plaintiffs and Mankind, a remedy in equity is warranted. Further, the public interest would not be disserved by the entry of a permanent injunction.

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COUNT IV

DECLARATORY JUDGMENT OF INFRINGEMENT OF THE '406 PATENT

70.

Plaintiffs restate, reallege, and incorporate by reference paragraphs 1–69 as if fully set forth herein.

71.

Plaintiffs' claims also arise under the Declaratory Judgment Act, 28 U.S.C. §§ 2201 and 2202.

72. On information and belief, if the Mankind ANDA is approved, the ANDA Product will be made, offered for sale, sold, or otherwise distributed in the United States, including in the State of New Jersey, by or through Mankind and its affiliates. Mankind will therefore directly infringe one or more claims of the '406 Patent either literally or under the doctrine of equivalents. See 35 U.S.C. § 271(a).

73. On information and belief, Mankind knows that health care professionals or patients will use the ANDA Product in accordance with the proposed prescribing information sought by the Mankind ANDA and Mankind will therefore contribute to the infringement of and/or induce the infringement of one or more claims of the '406 Patent under one or more of 35 U.S.C. §§ 271 (b) and (c).

74. On information and belief, Mankind's infringing activity, including the commercial manufacture, use, offer to sell, sale, or importation of the ANDA Product complained of herein will begin immediately after the FDA approves the Mankind ANDA. Any such conduct before the '406 Patent expires will directly infringe, contribute to the infringement of, and/or induce the infringement of one or more claims of the '406 Patent under one or more of 35 U.S.C. §§ 271(a), (b) and (c).

75. As a result of the foregoing facts, there is a real, substantial, and continuing justiciable controversy between Plaintiffs and Mankind concerning liability for the infringement

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of one or more claims of the '406 Patent for which this Court may grant declaratory relief consistent with Article III of the United States Constitution.

76.

Plaintiffs will be substantially and irreparably harmed by Mankind's infringing activities unless those activities are enjoined by this Court. Plaintiffs have no adequate remedy at law.

77. This case is exceptional, and Plaintiffs are entitled to an award of attorneys' fees under 35 U.S.C. § 285.

COUNT V

INFRINGEMENT OF THE '246 PATENT

78.

Plaintiffs restate, reallege, and incorporate by reference paragraphs 1–77 as if fully set forth herein.

79. On information and belief, Mankind Pharma has submitted or caused the submission of the Mankind ANDA to the FDA, and continues to seek FDA approval of the Mankind ANDA.

80. On information and belief, Mankind Pharma has infringed one or more claims of the '246 Patent under 35 U.S.C. § 271(e)(2)(A) by submitting the Mankind ANDA with a Paragraph IV certification and seeking FDA approval of the Mankind ANDA prior to the expiration of the '246 Patent, entitling Plaintiffs to the relief provided by 35 U.S.C. § 271(e)(4), including, inter alia, an order of this Court that the effective date of approval for the Mankind ANDA be a date which is not earlier than the expiration date of the '246 Patent.

81. On information and belief, FDA regulations provide, inter alia, that, “[g]enerally, a drug product intended for ophthalmic use . . . must contain the same inactive ingredients and in the same concentration as the reference listed drug” and further that “in a product intended for ophthalmic use, an applicant may not change a buffer . . . for the purpose of claiming a therapeutic

advantage over or difference from the listed drug . . . or by making a significant change in the pH or other change that may raise questions of irritability.” 21 C.F.R. § 314.94(a)(9)(iv).

82.

For example, claim 1 of the '246 Patent recites:

A liquid intraocular ophthalmic pharmaceutical solution dosage form consisting essentially of phenylephrine, ketorolac, and a buffer system, in solution in a pH-adjusted aqueous carrier as a solvent, that is free of preservatives, antioxidants and solubilizing agents, and a nitrogen gas overlay in a single-use container, wherein the phenylephrine is included at a concentration of 45 mM to 76 mM and the ketorolac is included at a concentration of about 8.5 mM to 14 mM, wherein the intraocular ophthalmic pharmaceutical solution is stable for a period of at least six months when stored at a temperature of from 5+/-3o C. to 25+/-2o C.

83. On information and belief, the ANDA Product is a liquid intraocular ophthalmic pharmaceutical solution dosage form consisting essentially of phenylephrine, ketorolac, and a buffer system, in solution in a pH-adjusted aqueous carrier as a solvent, that is free of preservatives, antioxidants and solubilizing agents, and a nitrogen gas overlay in a single-use container, wherein the phenylephrine is included at a concentration of 45 mM to 76 mM and the ketorolac is included at a concentration of about 8.5 mM to 14 mM, wherein the intraocular ophthalmic pharmaceutical solution is stable for a period of at least six months when stored at a temperature of from 5+/-3o C. to 25+/-2o C. See ¶¶ 39–41, supra.

84. Mankind's commercial manufacture, use, sale, offer for sale, or importation into the United States of the ANDA Product would directly infringe, actively induce infringement, and/or contribute to infringement of one or more claims of the '246 Patent. See 35 U.S.C. § 271(a), (b), and (c). Accordingly, unless enjoined by this Court, upon FDA approval of the Mankind ANDA, Mankind will make, use, offer to sell, or sell the ANDA Product within the United States, or will import the ANDA Product into the United States, and will thereby contribute to the infringement of and/or induce the infringement of one or more claims of the '246 Patent.

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85. Mankind Pharma's Notice Letter lacks any contention that Mankind's ANDA Product will not infringe, contribute to the infringement of, or induce the infringement of the '246 Patent.

86. On information and belief, upon FDA approval of the Mankind ANDA, Mankind will market and distribute the ANDA Product to resellers, pharmacies, hospitals and other clinics, health care professionals, and end users of the ANDA Product. On information and belief, Mankind will also knowingly and intentionally accompany the ANDA Product with proposed prescribing information and a product insert that will include instructions for using and administering the ANDA Product. Accordingly, Mankind will induce health care professionals, resellers, pharmacies, and end users of the ANDA Product to directly infringe one or more claims of the '246 Patent. In addition, on information and belief, Mankind will encourage acts of direct infringement with knowledge of the '246 Patent and knowledge that they are encouraging infringement.

87. Mankind Pharma had actual and constructive notice of the '246 Patent prior to filing the Mankind ANDA, and was aware that the filing of the Mankind ANDA with the request for FDA approval prior to the expiration of the '246 Patent would constitute an act of infringement of the '246 Patent.

88.

In addition, upon information and belief, Mankind Pharma filed the Mankind ANDA without adequate justification for asserting the '246 Patent to be invalid, unenforceable, and/or not infringed by the commercial manufacture, use, offer for sale, or sale of the ANDA Product. Mankind Pharma's conduct in certifying invalidity, unenforceability, and/or non-infringement with respect to the '246 Patent renders this case "exceptional" as that term is set forth in 35 U.S.C. § 285.

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89.

Plaintiffs will be irreparably harmed if Mankind is not enjoined from infringing, and from actively inducing or contributing to the infringement of one or more claims of the '246 Patent. Plaintiffs do not have an adequate remedy at law, and considering the balance of hardships between Plaintiffs and Mankind, a remedy in equity is warranted. Further, the public interest would not be disserved by the entry of a permanent injunction.

COUNT VI

DECLARATORY JUDGMENT OF INFRINGEMENT OF THE '246 PATENT

90.

Plaintiffs restate, reallege, and incorporate by reference paragraphs 1–89 as if fully set forth herein.

91.

Plaintiffs' claims also arise under the Declaratory Judgment Act, 28 U.S.C. §§ 2201 and 2202.

92. On information and belief, if the Mankind ANDA is approved, the ANDA Product will be made, offered for sale, sold, or otherwise distributed in the United States, including in the State of New Jersey, by or through Mankind and its affiliates. Mankind will therefore directly infringe one or more claims of the '246 Patent either literally or under the doctrine of equivalents. See 35 U.S.C. § 271(a).

93. On information and belief, Mankind knows that health care professionals or patients will use the ANDA Product in accordance with the proposed prescribing information sought by the Mankind ANDA and Mankind will therefore contribute to the infringement of and/or induce the infringement of one or more claims of the '246 Patent under one or more of 35 U.S.C. §§ 271 (b) and (c).

94. On information and belief, Mankind's infringing activity, including the commercial manufacture, use, offer to sell, sale, or importation of the ANDA Product complained of herein will begin immediately after the FDA approves the Mankind ANDA. Any such conduct before the

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'246 Patent expires will directly infringe, contribute to the infringement of, and/or induce the infringement of one or more claims of the '246 Patent under one or more of 35 U.S.C. §§ 271(a), (b) and (c).

95. As a result of the foregoing facts, there is a real, substantial, and continuing justiciable controversy between Plaintiffs and Mankind concerning liability for the infringement of one or more claims of the '246 Patent for which this Court may grant declaratory relief consistent with Article III of the United States Constitution.

96.

Plaintiffs will be substantially and irreparably harmed by Mankind's infringing activities unless those activities are enjoined by this Court. Plaintiffs have no adequate remedy at law.

97. This case is exceptional, and Plaintiffs are entitled to an award of attorneys' fees under 35 U.S.C. § 285.

REQUEST FOR RELIEF

WHEREFORE, Plaintiffs respectfully request the following relief:

- (A) A Judgment that under 35 U.S.C. § 271(e)(2)(A), Mankind Pharma's submission to the FDA of ANDA No. 221449 to obtain approval for the commercial manufacture, use, offer for sale, or sale in, or importation into, the United States of the ANDA Product before the expiration of the '856 Patent was an act of infringement of one or more claims of the '856 Patent;
- (B) A Judgment that under 35 U.S.C. § 271(e)(2)(A), Mankind Pharma's submission to the FDA of ANDA No. 221449 to obtain approval for the commercial manufacture, use, offer for sale, or sale in, or importation into, the United States of the ANDA Product before the expiration of the '406 Patent was an act of infringement of one or more claims of the '406 Patent;
- (C) A Judgment that under 35 U.S.C. § 271(e)(2)(A), Mankind Pharma's submission to the FDA of ANDA No. 221449 to obtain approval for the commercial manufacture, use, offer for sale, or sale in, or importation into, the United States of the ANDA Product before the expiration of the '246 Patent was an act of infringement of one or more claims of the '246 Patent;
- (D) A Declaratory Judgment that under one or more of 35 U.S.C. §§ 271(a), (b), (c), (f) and (g), Mankind's commercial manufacture, use, offer for sale, or sale in, or importation into, the United States of the ANDA Product, or inducing or contributing to such conduct, would constitute infringement of one or more claims of the '856 Patent;
- (E) A Declaratory Judgment that under one or more of 35 U.S.C. §§ 271(a), (b), (c), (f) and (g), Mankind's commercial manufacture, use, offer for sale, or sale in, or importation into, the United States of the ANDA Product, or inducing or contributing to such conduct, would constitute infringement of one or more claims of the '406 Patent;
- (F) A Declaratory Judgment that under one or more of 35 U.S.C. §§ 271(a), (b), (c), (f) and (g), Mankind's commercial manufacture, use, offer for sale, or sale in, or importation into, the United States of the ANDA Product, or inducing or contributing to such conduct, would constitute infringement of one or more claims of the '246 Patent;
- (G) The entry of a preliminary and permanent injunction, pursuant to 35 U.S.C. § 271(e)(4)(B), enjoining Mankind, its affiliates and subsidiaries, and all persons and entities acting in concert with Mankind from commercially manufacturing, using, offering for sale, or selling the ANDA Product within the United States, or importing the ANDA Product into the United States, until the expiration of the '856, '406, and '246 Patents;
- (H) The entry of an order, pursuant to 35 U.S.C. § 271(e)(4)(A), that the effective date of any FDA approval of ANDA No. 221449 shall be no earlier than the last expiration date of any of the '856, '406, and '246 Patents, or any later expiration of exclusivity for any of the '856, '406, and '246 Patents, including any extensions or regulatory exclusivities;

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- (I) An award of damages or other relief, pursuant to 35 U.S.C. § 271(e)(4)(C), if Mankind engages in the commercial manufacture, use, offer for sale, sale, and/or importation of the ANDA Product, or any product that infringes the '856 Patent, or induces or contributes to such conduct, prior to the expiration of the '856 Patent;
- (J) An award of damages or other relief, pursuant to 35 U.S.C. § 271(e)(4)(C), if Mankind engages in the commercial manufacture, use, offer for sale, sale, and/or importation of the ANDA Product, or any product that infringes the '406 Patent, or induces or contributes to such conduct, prior to the expiration of the '406 Patent;
- (K) An award of damages or other relief, pursuant to 35 U.S.C. § 271(e)(4)(C), if Mankind engages in the commercial manufacture, use, offer for sale, sale, and/or importation of the ANDA Product, or any product that infringes the '246 Patent, or induces or contributes to such conduct, prior to the expiration of the '246 Patent;
- (L) The entry of Judgment declaring that Mankind's acts render this case an exceptional case, and awarding Plaintiffs their attorneys' fees pursuant to 35 U.S.C. §§ 271(e)(4) and 285;
- (M) An award to Plaintiffs of their costs and expenses in this action; and
- (N) Such other and further relief as the Court deems just and proper.

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Dated: June 18, 2026

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LOCAL CIVIL RULES 11.2 AND 40.1 CERTIFICATION

Pursuant to Local Civil Rules 11.2 and 40.1, I hereby certify that the matter in controversy involves the same plaintiffs, the same patents, and a defendant seeking approval to sell a generic version of the same drug product that is at issue in the matters captioned Rayner Surgical Inc., et al. v. Somerset Therapeutics, LLC, Civil Action No. 24-9017 (GC)(JBD) (D.N.J.) and Rayner Surgical Inc. v. Amneal Pharms. of N.Y., LLC, Civil Action No. 26-3629 (GC)(JBD) (D.N.J.), currently pending in this Judicial District.

I further certify that, to the best of my knowledge, the matter in controversy is not the subject of any other action pending in any court or of any pending arbitration or administrative proceeding.

Dated: June 18, 2026

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